



EVL1 — Introduction to Evidence and Proof

Module 1 — Introduction to Evidence Law

Lesson 3: Historical Development of Evidence Law

Student Lesson Notes

ORIGINS OF EVIDENCE LAW IN ENGLAND

Why History Matters

Understanding where evidence law came from helps you understand why it looks the way it does today. Many rules that might seem strange or overly technical make perfect sense once you know the historical problem they were designed to solve. Evidence law did not arrive fully formed — it developed gradually over centuries.

Trial by Ordeal and Trial by Combat

Before modern evidence law existed, English courts used methods we would today consider barbaric for determining truth in disputes.

Trial by Ordeal: Required an accused person to undergo a physical test — holding red-hot iron, water immersion, or walking over burning coals. The outcome was attributed to divine judgment — God would protect the innocent.

Trial by Combat: Allowed parties to fight physically, with the winner deemed to have God's favour and therefore the law on his side.

These methods had nothing to do with evidence in any meaningful sense. They were not concerned with establishing what actually happened. They were rituals of proof that relied entirely on divine intervention.

The Emergence of the Jury System

Trial by ordeal was abolished in 1215 by Pope Innocent III (Fourth Lateran Council). This forced English courts to develop a new method of determining facts. The jury system, which had existed in rudimentary form, began developing into something closer to what we know today.

Early juries were very different from modern ones — jurors were expected to already know about the dispute from local community knowledge. As society became more complex, this local knowledge model broke down. Jurors increasingly had to rely on testimony and documents presented to them in court, creating the need for rules about what information jurors could receive.

Development of Common Law Evidence Rules

Between the 16th and 19th centuries, English judges began developing rules to govern what evidence could be placed before juries. Several important principles emerged:

- The hearsay rule — developed because courts recognised that a statement made outside court could not be tested through cross-examination.
- The best evidence rule — to ensure courts received original documents rather than copies, reducing fraud risk.
- Rules about witness competence — determining who could testify; for many centuries, parties could not testify on their own behalf.
- The privilege against self-incrimination — developed from rejection of the Star Chamber practice of compelling suspects to answer questions under oath before any charge.

The Need for Reform

By the early 19th century, English evidence law was dense, complicated, and often inconsistent. The reformer Jeremy Bentham wrote extensively and critically about evidence law, arguing that many technical rules served no real purpose and obstructed the discovery of truth. Bentham's critique contributed directly to the movement to codify and simplify evidence law — a movement that eventually produced the statute Uganda uses today.

THE INDIAN EVIDENCE ACT 1872 AND ITS JOURNEY TO UGANDA

Sir James Fitzjames Stephen and Codification

The reform of evidence law that critics like Bentham called for did not first happen in England. It happened in British India. In 1871, Sir James Fitzjames Stephen was tasked with drafting a codified evidence statute for British India. Stephen's goal was to take the complex, inconsistent body of English common law evidence rules and reduce them to a clear, systematic written code.

The result was the Indian Evidence Act of 1872 — a remarkable achievement of legal drafting. It organised centuries of English judicial decisions into a coherent structure covering relevancy, admissibility, oral evidence, documentary evidence, burden of proof, presumptions, witnesses, and corroboration.

Adoption Across East Africa

British colonial administrators in East Africa needed a legal system that could function across diverse territories. The Indian Evidence Act 1872 offered a practical solution — already drafted, tested in Indian courts, available in English, and familiar to colonial administrators who had served in India.

It was therefore adopted across the East African territories — including what was then the Uganda Protectorate — as the governing statute for evidence in colonial courts. This adoption was not a thoughtful consultation process. It was a colonial imposition applied regardless of whether its provisions reflected Ugandan social realities or customary practices.

Evidence Law in Independent Uganda

Uganda gained independence on 9th October 1962. Like most former British colonies, Uganda did not immediately replace the inherited legal framework. The Evidence Act remained in force, now as a statute of the independent Ugandan state. Over the decades, Uganda's courts built a body of local case law interpreting the statute's provisions in Ugandan contexts.

The Laws of Uganda have been revised several times — in 1964, 1990, 2000, and most recently with the 2024 Revised Edition now in force. Under the current 2024 Revised Edition, the statute is cited as the Evidence Act Cap. 8.

IMPORTANT: Students must always use the correct 2024 citation — Evidence Act Cap. 8. Earlier editions used different chapter numbers. Those old citations are now incorrect and should never be used in academic or professional work.

Key Ugandan Cases Developing Evidence Law

Uganda v Doyi Wabwire Kyoyo (1976) HCB 212 — Established foundational procedural safeguards for magistrates taking confessions from accused persons.

Uganda v Ntambazi [1996] HCB 29 — Established foundational procedural rules for conducting fair police identification parades.

Francis Xavier Kayemba v Uganda [1983] HCB 330 — Established the standard for a prima facie case in Ugandan criminal proceedings.

Commonwealth Persuasive Authority

Because Uganda's Evidence Act shares common ancestry with evidence legislation of other Commonwealth countries — India, Kenya, Tanzania — decisions of courts in those jurisdictions are sometimes persuasive in Uganda. They are not binding but may be cited where they interpret provisions identical or similar to the Evidence Act Cap. 8.

Pakala Narayana Swami v King Emperor AIR 1939 PC 47, Privy Council — On dying declarations under the Indian Evidence Act 1872 — regularly cited as persuasive authority in Uganda since Section 30 of the Evidence Act Cap. 8 traces to the same source provision.

EVIDENCE LAW IN EAST AFRICA AND UGANDA TODAY

The East African Evidence Law Family

Uganda, Kenya, and Tanzania share a common evidence law heritage. All three countries inherited their evidence statutes from the same colonial source — the Indian Evidence Act 1872. This means decisions from Kenyan and Tanzanian courts are frequently cited as persuasive authority in Uganda. They are not binding — Ugandan courts are not required to follow them — but they are often influential.

This is different from the relationship with English law. English courts developed their evidence law along a different path after the colonial period through statutes such as the Police and Criminal Evidence Act 1984 and the Criminal Justice Act 2003, which do not apply in Uganda. East African decisions are generally more directly applicable to Ugandan provisions.

The Current Position — Evidence Act Cap. 8

The governing statute today is the Evidence Act Cap. 8 under the 2024 Revised Edition of the Laws of Uganda, which came into effect on 1st July 2024. The Act covers three broad parts:

- Part I — Relevancy of facts
- Part II — Proof
- Part III — Production and effect of evidence

Constitutional Dimensions

Since the Constitution of Uganda 1995 came into force, evidence law has acquired a constitutional dimension that did not exist under the colonial framework:

Article 28: Guarantees the right to a fair hearing — foundational for all fairness rules in evidence law.

Article 24: Prohibits torture — makes confessions obtained through torture constitutionally inadmissible.

Article 44: Lists non-derogable rights — fair trial cannot be suspended even in a state of emergency.

Article 50: Allows any person to apply to the High Court for redress if constitutional rights are violated.

Electronic Evidence — A Modern Development

One area where the Evidence Act Cap. 8 has had to evolve beyond its 1872 origins is electronic evidence. Text messages, emails, social media posts, digital photographs, CCTV footage, and electronic transaction records are now routinely produced as evidence in Ugandan courts.

Electronic Transactions Act Cap. 99: Provides the statutory framework for legal recognition of electronic records and transactions.

Electronic Signatures Act Cap. 98: Governs electronic signatures, working alongside the Evidence Act Cap. 8 for electronic evidence authentication.

Where Ugandan Evidence Law Stands Today

Ugandan evidence law in 2024 has four key characteristics:

- A solid statutory foundation in the Evidence Act Cap. 8 refined over 150 years
- A growing body of Ugandan judicial decisions interpreting that framework in specifically Ugandan contexts
- A constitutional overlay from the 1995 Constitution providing minimum standards of fairness
- Modern statutory supplements dealing with electronic evidence under the Electronic Transactions Act Cap. 99 and Electronic Signatures Act Cap. 98

LESSON SUMMARY — KEY POINTS

- ✓ Before modern evidence law: English courts used trial by ordeal and trial by combat — abolished in 1215
- ✓ The Indian Evidence Act 1872 was drafted by Sir James Fitzjames Stephen as a codification of English common law evidence rules
- ✓ The Act was adopted across East Africa through British colonial administration — not through consultation
- ✓ Uganda retained the Evidence Act after independence on 9th October 1962
- ✓ Under the 2024 Revised Edition of the Laws of Uganda, the statute is cited as Evidence Act Cap. 8 — this is the only correct citation
- ✓ Uganda, Kenya, and Tanzania share common evidence law heritage — their court decisions are mutually persuasive but not binding
- ✓ The Constitution of Uganda 1995 has added a constitutional dimension — Articles 24, 28, 44, and 50 all interact with evidence law
- ✓ Electronic evidence is governed by Electronic Transactions Act Cap. 99 and Electronic Signatures Act Cap. 98 alongside the Evidence Act Cap. 8

SELF-TEST QUESTIONS

Attempt these before checking the platform practice quiz.

1. Who drafted the Indian Evidence Act 1872 and what was his goal?
2. How did the Indian Evidence Act 1872 come to apply in Uganda?
3. Under the 2024 Revised Edition of the Laws of Uganda, what is the correct citation for the evidence statute?
4. Why are Kenyan and Tanzanian court decisions sometimes cited in Ugandan evidence law cases? Are they binding?
5. Name two constitutional provisions that directly affect evidence law in Uganda and explain how each one operates.